

Judgment Sheet
LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
Judicial Department

I.C.A. No. 174 of 2021 / BWP

Dr. Manzoor Hussain Malik

Versus

Mahar Muhammad Khalid Ahmad, Additional Commissioner
(Revenue), Bahawalpur and two others

I.C.A. No. 81 of 2020 / BWP

Malik Ahmad Nawaz

Versus

Ashraf Bhatti and two others

JUDGMENT

Date of Hearing:	02.11.2021
Appellant(s) By:	Mr. Muhammad Naveed Farhan, Advocate Mr. Ahmad Mansoor Chishti, Advocate
Respondent(s) By:	Malik Imtiaz Mehmood Awan, Advocate Mr. Jam Muhammad Afzal Gasoor, Assistant Advocate General

ABID HUSSAIN CHATTHA, J: This single Judgment shall decide the titled appeals since common questions of law and facts are involved therein.

2. I.C.A. No. 174 of 2021 / BWP was instituted under Section 19 of the Contempt of Court Ordinance, 2003 (the “**Ordinance**”) against the impugned order dated 20.09.2021 passed by the learned Single Judge in Chambers, whereby, Criminal Original No. 804-W of 2021 instituted by the Appellant seeking initiation of contempt proceedings under

Sections 3 & 5 of the Ordinance against the Respondents for non-compliance of the injunctive order dated 06.07.2021 passed in W.P. No. 5694 / 2021 was dismissed.

3. It was contended in the appeal before us that the Respondents in violation of the aforesaid injunctive order demolished the outside front wall and gate of the premises of the Appellant, thereby, committing contempt of Court by ‘willfully disobeying’ the order of this Court. However, the learned Single Judge in Chambers found that the Appellant did not mention the date, time and place to establish that the Respondents were duly served with the order of the Court before the alleged contemptuous act. Hence, the alleged contemptuous act was ‘not willful’, especially when the Respondents categorically submitted that the order dated 06.07.2021 came to their knowledge on 29.07.2021, whereafter, further action was adjourned till the vacation of the said injunctive order. Accordingly, the learned Single Judge in Chambers dismissed the said Criminal Original vide order dated 20.09.2021 with the following observations:

“Allegedly the proceedings regarding the matter in issue are still pending before the Member Board of Revenue (Punjab), Lahore wherein record from the concerned revenue officers has been summoned. Prima facie it seems that under the garb of this Petition, the Petitioner wants to exert pressure on the Respondents so that legal proceedings may not be initiated against the illegal occupants of valuable State land. Without any evidence, the Respondents cannot be proceeded against for contempt of Court on the basis of vague allegation. In these circumstances, this Court has reason to believe that Respondents have not committed the contempt of this Court. Thus, instant Petition having no force stands dismissed.”

4. I.C.A. No. 81 of 2020 / BWP was instituted under Section 3 of the Law Reforms Ordinance, 1972 but at the

request of counsel for the Appellant, it was converted into an appeal under Section 19 of the Ordinance against the impugned order dated 04.11.2020 passed by the learned Single Judge in Chambers, whereby, Criminal Original No. 936-W of 2019 / BWP instituted by the Appellant seeking initiation of contempt proceedings under Sections 3 & 5 of the Ordinance against the Respondents for non-compliance of directions contained in order dated 25.10.2017 passed in W. P. No. 8878 of 2017/ BWP was disposed of.

5. It was contended in the appeal before us that the Respondents were directed to install lift pump at RD:193200-L which was initially installed at RD:191820-L of Bahawal Canal, Mouza Jugat Peer, Tehsil Khairpur Tamewali, District Bahawalpur as the latter was not the actual approved place for installation of lift pump. Accordingly, the learned Single Judge in Chambers on 25.10.2017 directed Respondents No. 1 & 2 to implement the orders dated 06.05.2010 & 21.09.2010 but non-compliance thereof, constrained the Appellant to file Criminal Original No. 959 of 2018 / BWP, wherein, an order dated 30.05.2019 was produced on behalf of the Respondents in compliance with the order of this Court and accordingly, the said Criminal Original was disposed of. However, the Appellant filed another Criminal Original No. 936-W of 2019 / BWP on the plea that the grievance of the Petitioner was not redressed as well as the directions of this Court were violated but the same was also disposed of vide impugned order herein by the learned Single Judge in Chambers in the following terms:

“Through this contempt Petition, implementation of order dated 25.10.2017 passed in W. P. No. 8878 of 2017 has been asked for. Perusal of said order would show that lift pump was ordered to be installed in RD.193200-L.

2. Reply has been filed on behalf of the Respondents, which signifies that in the year 1996,

lift pump was already sanctioned in the said area and has been installed therein. In order to fortify this, Mr. Mubashir Majeed, X-EN Bahawalpur Canal Division, Bahawalpur has entered appearance and acknowledges that the said lift pump has already been installed, therefore, another lift pump cannot be installed in the said area.”

6. At the very outset, learned Law Officer submitted that since it is settled law that the matter regarding initiation of contempt proceedings is always between the Court and the alleged contemnor and none of the parties contesting any matter has any vested right to press / seeking the initiation of contempt proceedings to enforce their respective claims or rights before the Court of law. Adds that except against the order of conviction passed, the Ordinance does not provide any statutory right of appeal. Accordingly, it was prayed that these appeals may be dismissed being not maintainable.

7. When confronted, learned counsels for the respective Appellants contended that Section 19 of the Ordinance does not place any restriction in exercise of right of an appeal in cases of conviction only in terms of Section 5 of the Ordinance, rather it allows or permits the filing of an appeal against all the ‘orders passed by a superior Court in cases of Contempt’. It was vociferously argued that when the law does not specify the type of ‘orders’ against which appeal is provided, the same cannot be curtailed through interpretation and as such the appeal is maintainable being a substantive right in the manner provided by the statute without any caveat. The impugned orders were in the nature of formal expression of intent of Court regarding the substantive rights of the Appellants against which the contempt proceedings were initiated. Therefore, initiation of contempt proceedings was rightly prayed for. The Appellants, as such, had a vested right to seek initiation of contempt proceedings to ensure the

implementation of the orders and closure of contempt proceedings through the impugned orders has caused serious prejudice to the cause of the Appellants. Further asserted that if orders passed by the Court are not implemented through appropriate contempt proceedings, the entire edifice of administration of justice would collapse and there would be no adequate and efficacious remedy available with the Appellants to reap the fruit in terms of respective orders passed in their favour.

8. Learned Counsel for the Appellant in I.C.A. No. 174 of 2021 additionally asserted that the controversy between the parties was misconstrued by the learned Single Judge in Chambers while observing that the Appellant wants to exert pressure so that legal proceedings may not be initiated against him on account of occupying the valuable State land. The Appellant purchased the said land through registered sale deed which is still intact from the vender who acquired the same in auction. The interim injunctive relief was duly communicated to the Respondents by the Appellant. Therefore, the impugned order refusing to proceed further in contempt proceedings was passed in haste and is based on misreading and non-reading of material on record. The observations made therein have caused serious prejudice to the rights and interests of the Appellant which will also prejudice the proceedings before other judicial forums to the detriment of the Appellant. As such, the learned Single Judge in Chambers committed material irregularity by passing the impugned order ignoring that constitutional guarantees are equally applicable to the private and Government properties. Further, the Appellant did not have any other recourse but to file the instant appeal to redress the wrong which has been occasioned on account of dismissal of the

contempt proceedings. Accordingly, this appeal is maintainable and ought to be decided on merits.

9. Learned Counsel for the Appellant in I.C.A. No. 81 of 2020 while adopting the above recorded arguments further contended that while passing the impugned order, the learned Single Judge in Chambers did not examine the statement of Executive Engineer to the effect that the lift pump was installed at an unapproved location. The purpose or intent of the directions issued by the Court, therefore, was to get it installed at the approved location. Further, as the lift pump was installed in the center of the Appellant's land which divided it in two portions. Since the right, previously adjudicated in favour of the Appellant was effectively taken away or recalled by the learned Single Judge in Chambers while disposing of the contempt proceedings, as such, the impugned order suffers from illegality and material irregularity. Hence, the Appellant has no other remedy but to invoke his statutory right of appeal under Section 19 of the Ordinance which is maintainable and required to be decided on merits in view of the peculiar facts and circumstances of the case.

10. Accordingly, the following propositions of law emerge for determination by this Court:

- (i) What kind of orders passed in original contempt proceedings are appealable under Section 19 of the Ordinance?
- (ii) What is the distinction between civil contempt vis-à-vis criminal or judicial contempt?
- (iii) What is the status and effect of variety of directions or orders passed in civil contempt proceedings upon the rights and interests of parties and non-parties in such proceedings?

11. In order to promote and ensure an effective, robust, dynamic and efficacious system of administration of justice, the concept or powers pertaining to contempt of Court are recognized by all major jurisdictions of the world and our country is obviously of no exception. Contempt jurisdiction is conferred with twofold objectives. Foremost is to uphold rule of law and subsidiary is to punish the contemnor if vindication of rule of law cannot be achieved without sentencing the alleged contemnor as a deterrent. The importance of arming a Court with necessary powers to initiate contempt proceedings with the objective to enforce and retain the majesty of law and dignity of the Court can be gauged from the fact that the Constitution of the Islamic Republic of Pakistan, 1973 (the “**Constitution**”) itself confers and vests powers with the superior Courts relating to contempt of Court. Article 204 of the Constitution reads as under:

*“**Contempt of Court.** (1) In this Article, “Court” means the Supreme Court or a High Court.*

(2) A Court shall have power to punish any person who—

- (a) abuses, interferes with or obstructs the process of the Court in any way or disobeys any order of the Court;*
- (b) scandalizes the Court or otherwise does anything which tends to bring the Court or a Judge of the Court into hatred, ridicule or contempt;*
- (c) does anything which tends to prejudice the determination of a matter pending before the Court; or*
- (d) does any other thing which, by law, constitutes contempt of the Court.*

(3) The exercise of the power conferred on a Court by this Article may be regulated by law and, subject to law, by rules made by the Court.”

12. Article 204 of the Constitution unequivocally vouchsafes wide discretionary powers of contempt to superior

Courts to maintain judicial authority. The Constitution is the supreme law of the country and unmistakably casts an inviolable duty of loyalty and obedience to the Court and law upon every citizen as stipulated in Article 5 thereof. Needless to say that the Constitution has been framed by citizens through their chosen representatives. To provide protection of law and enforce the fundamental rights guaranteed by the Constitution are the primary responsibility of the superior Courts. Every organ and institution of the State is bound to assist the Court of law in its due functioning while upholding its dignity and effectiveness. Discernibly, persistent defiance of Court orders imperils and undermines judicial authority. Hence, vast, general, broad and open-ended powers are vested with the superior Courts to punish any person who in any way either obstructs the process of the Court or disobeys any order of the Court. The Constitution equally accords protection to the dignity of the Court, the orders of the Court, the Judge of the Court and judicial proceedings since all are different facets of administration of justice and together guarantee the overarching respect, sanction and authority that a Court of law or a Judge must command to perpetuate order, discipline and rule of law in the society. It further declares that powers conferred by this Article can further be expanded by law but realizing the broad spectrum of powers so bestowed recognizes the need of regulation of such powers by law and subject to such law by rules made by the Court. The importance of the power of contempt has been aptly highlighted in case titled, “Syed Yousaf Raza Gillani, Prime Minister of Pakistan v. Assistant Registrar, Supreme Court of Pakistan and another” (PLD 2012 Supreme Court 466).

13. It may be observed that primarily, upon scanning the relevant law, three important conclusions emerge. First, the

power relating to contempt is confined to ‘power to punish’. It is not contemplated as a mechanism for the execution, enforcement or implementation of the orders of the Court. It means that an alleged contemnor is subject to punishment, however, after undergoing the punishment, he cannot be coerced to implement an order. Nevertheless, the power to punish a contemnor invariably implies that all orders of the Court ought to be implemented otherwise contempt proceedings shall follow. Second, the power of contempt can further be expanded and structured to meet the changing needs and requirements of the society. Third, the contempt jurisdiction can validly be regulated by law and subject thereto, by rules made by the Court underlying the rationale that power of contempt being a serious, significant and unfettered power is required to be exercised in a manner which prevents its abuse and ensures its effectiveness so as to strike a balance between the two extremes.

14. Accordingly, the Ordinance was promulgated under the authority conferred by Article 204(3) of the Constitution. Section 19 of the Ordinance, the subject matter of our query, provides a statutory remedy of appeal. For ready reference, it is reproduced as under:

*“**Appeal.** (1) Notwithstanding anything contained in any other law or the rules for the time being in force, orders passed by a superior Court in cases of contempt shall be appealable in the following manner:-*

- (i) In the case of an order passed by a Single Judge of a High Court an intra-Court appeal shall lie to a bench of two or more Judges;*
- (ii) In a case in which the original order has been passed by a Division or larger Bench of a High Court an appeal shall lie to the Supreme Court; and*

- (iii) *In the case of an original order passed by a Single Judge or a bench of two Judges of the Supreme Court an intra-Court appeal shall lie to a Bench of three Judges and in case the original order was Passed by a Bench of three or more Judges an intra-Court appeal shall lie to a Bench of five or more Judges.*
- (2) *The Appellate Court may suspend the impugned order pending disposal of the appeal.*
- (3) *The limitation period for filing an appeal shall be thirty days.”*

15. The vital and moot expression requiring interpretation is as to whether every order or some specific ‘orders’ passed by a superior Court in cases of contempt are subject to appeal under Section 19 of the Ordinance. At this juncture, it would be beneficial, rather imperative, to analyze the scheme of law encapsulated and enshrined in the Ordinance to understand the meaning, wisdom and intention behind the conferment of remedy of appeal which is provided under Section 19 of the Ordinance. The Ordinance classifies and divides the cases of contempt into three different species, i.e. “Civil Contempt”, “Criminal Contempt” and “Judicial Contempt” and each type of contempt has been defined in Sections 2(a), (b) & (c) of the Ordinance, respectively. Civil Contempt means the willful flouting or disregard of an order, whether interim or final, a judgment or decree of a Court; a writ or order issued by a Court in the exercise of its constitutional jurisdiction; an undertaking given to, and recorded by, a Court; or the process of a Court. Criminal Contempt means the doing of any act with intent to, or having the effect of, obstructing the administration of justice. Judicial Contempt means the scandalization of a Court and includes personalized criticism of a Judge while holding office.

16. Section 3 of the Ordinance being a charging provision provides that disobedience or disregarding any order,

direction or process of a Court, which one is legally bound to obey; or commission of a willful breach of a valid undertaking given to a Court; or doing anything which is intended to or tends to bring the authority of a Court or the administration of law into disrespect or disrepute, or to interfere with or obstruct or interrupt or prejudice the process of law or the due course of any judicial proceedings, or to lower the authority of a Court or scandalizing a Judge in relation to his office, or to disturb the order of decorum of a Court, is said to commit “contempt of Court” which is of three types as stated above. Section 4 of the Ordinance enunciates and reiterates the general principle that every superior Court shall have the power to punish a contempt committed in relation to it. Additionally, subject to the condition that no High Court shall proceed in cases in which an alleged contempt is punishable by a subordinate Court under the Pakistan Penal Code, 1860, every High Court has been vested with the power to punish a contempt committed in relation to any of its subordinate Court.

17. Section 5 of the Ordinance is of paramount importance being the only penal provision in the Ordinance. It prescribes punishment for the alleged contemnor by way of imprisonment which may extend to six months simple imprisonment, or with fine upto one hundred thousand rupees, or both. Importantly and simultaneously, Section 5(2) underlying and pronouncing the universally accepted principle of inherent magnanimity of the Court provides that a person accused of having committed contempt of Court may, at any stage, submit an apology and the Court, if satisfied of its *bona fide*, may discharge him or remit his sentence. Section 5(4) loudly emphasis a caveat by stating that no Court shall have the power to pass any order of punishment for or in relation to any act of contempt save and except in accordance with Section

5(1) of the Ordinance, notwithstanding anything contained in any judgment. Section 6 of the Ordinance lists instances when a criminal contempt is deemed to have been committed, while Section 7 declares that a superior Court may take action in a criminal contempt *suo motu* or on the initiative of any person connected with the proceedings in which the alleged contempt has been committed or on the application of the law officer of the Provincial or the Federal Government. Similarly, even in Judicial Contempt, Section 11 contemplates that a superior Court may initiate proceedings on its own or on information laid before it by any person. It goes as far as declaring that if any false information is placed before the Court, the person laying such false information can also be held liable to be proceeded against for contempt of Court.

18. Civil contempt may also be initiated either *suo motu* or at the instance of any aggrieved party as contemplated under Section 12 of the Ordinance which importantly stipulates that the provisions relating to Civil Contempt are in addition to, and not in derogation of, the power of the Court under any other law for the time being in force to enforce compliance of its orders, judgments or decrees. Section 17 of the Ordinance provides a uniform procedure to be adopted by a Court in a case of contempt which is commenced by issuance of a notice, or a show-cause notice, at the discretion of the Court. The Court has the authority to require personal appearance of the contemnor and at the same time may exempt the alleged contemnor from appearing personally. Section 17(3) envisages that if after giving the alleged contemnor an opportunity of preliminary hearing, the Court is *prima facie* satisfied that the interest of justice so requires, it shall fix a date for framing a charge in open Court and proceed to decide the matter. A vast discretion

is vested with the Court to regulate the procedure in cases of contempt of Court.

19. Section 18 of the Ordinance while introducing the principle of substantial detriment emphatically states that no person shall be found guilty of contempt of Court, or punished, unless the Court is satisfied that the contempt is substantially detrimental to the administration of justice or scandalizes the Court or otherwise tends to bring the Court or Judge of the Court into hatred or ridicule. If the alleged contemnor is not found guilty of contempt, the Court may pass an order deprecating the conduct, or actions of the alleged contemnor. The truth, subject to the provisions of the Ordinance as ordained in Section 18(3) of the Ordinance, is recognized as a valid defense.

20. It, therefore, follows that the charging Section 3 of the Ordinance covers and encompasses all three types of contempt listed therein. The common feature in all three types of contempt is that the Court may initiate contempt proceedings *suo motu* or on information provided by an informer. Criminal contempt brought the moral authority of the Court into disrepute and encompasses a host of situations which the Court by exercising its contempt jurisdiction is required to deal effectively to ensure due process regarding all aspects of free and fair trial as ordained by applicable law without causing prejudice to the rights and interests of all stakeholders. Judicial contempt aims to protect, preserve and uphold the authority, sanction and dignity of the Court. However, civil contempt is conspicuously different and is deliberately expanded in terms of its manifestations and ramifications. It is the only type of contempt that speaks of an ‘order’ and includes the expression ‘interim’ or ‘final’, a ‘judgment’ or ‘decree’, or a ‘writ or order’ passed in constitutional jurisdiction within the contemplation of

the overarching term ‘order’ employed in Section 2(a) of the Ordinance. Even civil contempt is expanded to include ‘an undertaking given to and recorded by a Court’ and ‘the process of the Court’ itself as contained in Section 2(a)(iii) & (iv) of the Ordinance. This conscious attempt on the part of the legislature to expand the power in cases of civil contempt is fortified by unflinching declaration under Section 12(2) of the Ordinance to the effect that provisions relating to civil contempt are in addition to and not in derogation of the power of the Court under any law for the time being in force to enforce its orders, judgments or decrees.

21. As observed hereinabove that broad-based conferment of powers, in case of civil contempt is in line with the command and dictate of Article 204(2)(d) of the Constitution which states that a Court shall have the power to punish any person, for doing any other thing which, by law, constitutes contempt of the Court. Therefore, in case of civil contempt, the Court has been armed with additional tool through initiation of contempt proceedings to ensure the compliance of wide range of its multi-dimensional orders passed with respect to a variety of modern days laws in addition to other remedies available to an aggrieved party for the enforcement of Court orders. It is for this reason that the Courts liberally initiate contempt proceedings in cases of civil contempt to *prima facie* examine the issue of implementation of their orders. The underlying objectives behind the law of contempt include the speedy enforcement of orders of Courts to save the parties from the rigors of execution, to interpret and clarify its own orders, and to preserve the authority of law and the dignity of the Court. Unless during the course of proceedings, it is found by a Court that the defiance is ‘willful’, ‘deliberate’ or ‘intentional’ with the objective to undermine the

authority, sanction and dignity of the Court, the initiation of contempt proceedings is not desirable. Thus, cognizance of civil contempt is always subject to further scrutiny of the Court with respect to the reasons for disobedience.

22. If the Court reaches to the conclusion that either the 'order' has been sufficiently complied with or there are other compelling reasons or factors which were not considered by the Court at the time of passing of an 'order' or subsequent events have occurred which does not warrant compliance in the manner sought by an aggrieved person, the contempt proceedings may be dropped. Such droppage depends upon the discretion of the Court after employing the test of 'satisfaction' and invoking the principle of substantial detriment embodied in Section 18 of the Ordinance. In appropriate cases, the Court may pass an order deprecating the conduct, or actions, of the alleged contemnor. Therefore, it can safely be gathered from the scheme of law under the Ordinance that power of contempt including civil contempt is an extraordinary and discretionary power vested in the Court. It is, therefore, concluded that the informer or an aggrieved party laying the information of alleged contempt before the Court does not have a vested right to force the Court to continue with the contempt proceedings if the Court prefers to close the same after its due satisfaction.

23. There is no cavil to the proposition that the right of appeal is a substantive right and can only be availed by a person, in the manner and to the extent, it is expressly and manifestly provided under the enabling statute. It is an established principle of law that the jurisdiction of the Court cannot be invoked or exercised for mere academic discussion or futile purposes. Rather, the Court must deliberate on issues with objectivity to render definite findings. Purpose of providing the remedy of appeal is to evaluate and examine the correctness and

validity of the orders passed by the Court below to eliminate chances of miscarriage of justice. The legislature while enacting Section 19 of the Ordinance without specifying the person in whose matter the right of appeal is vested, evidently has provided the forum of appeal. Such deliberate omission on the part of the legislature is quite meaningful and apparently had been made with a specific purpose. The omission necessarily implies that the legislature has left it open upon the discretion of the Court to determine who is an aggrieved person and consequently, ought to be allowed to exercise the right of appeal. Multi-dimensional orders may come up before the Court including orders of conviction, acquittal or refusing to initiate or dropping the contempt proceedings. An order may be inherently unlawful, void, *corum non-judice* or without jurisdiction. An order may be passed against a person without hearing or may adversely affect the rights of a person who is not a party in original proceedings. There may also be an order which by implications is non-executable or has become, as such, due to subsequent events. It is neither possible nor advisable to imagine all possible scenario. Suffice is to say that an order passed in original contempt proceedings may require its correction in appeal because of its effects upon the adverse party. Further, when the legislature intended to provide meaningful discretion to the Court, the jurisdiction so vested cannot be abdicated. Therefore, the question of determination of maintainability of appeal would depend upon the peculiar facts and circumstances of each case based on the 'nature of the impugned order' in cases of civil contempt.

24. Generally, there is judicial consensus that a person convicted under the Ordinance is regarded as an aggrieved person and has the statutory right of appeal against his conviction under Section 19 of the Ordinance since he cannot

be left remediless. However, if contempt proceedings are terminated, not even the State or informer can agitate the same in appeal. This was so held in the case titled, “Shahid Orakzai v. Mian Muhammad Nawaz Sharif, Prime Minister of Pakistan and another” (2016 PCr.LJ 1017). It has also been held by a Division Bench of this Court in case titled, “Zahid Waheed Khan v. Crystal Chemicals Ltd.” (2006 YLR 2577) that an appeal is competent only against an order of conviction or sentence but not against an order refusing interference or conviction of the contemnor. Similar view was expressed in case titled, “Mrs. Razia Yaqub v. Malik Muhammad Ashiq and 2 others” (PLD 2003 Lahore 486) by holding that jurisdiction vested in Court under Article 204 of the Constitution read with Section 4 of the Contempt of Court Act, 1976 is limited to conviction and sentence of the contemnor.

25. In another case titled, “Adeel Arshad v. Ishfaq Ahmad Chaudhry, D.C. Khanewal and others” (PLD 2021 Lahore 741), a Division Bench of this Court specifically deliberated upon the question as to whether an Intra Court Appeal is maintainable or not in the light of Article 204 of the Constitution and Section 19 of the Ordinance against the order passed by this Court in a criminal original. It was held that the word ‘orders’ used in Section 19 of the Ordinance only applies to such orders, decisions and judgments terminating the proceedings finally against the contemnor. It is the order of awarding punishment to the contemnor, whereas, the interlocutory, interim or procedural orders do not fall within the ambit of ‘orders’ passed in the contempt of Court proceedings. The Court held as above after analyzing the definition of “order” in terms of Section 2(14) read with the provisions of Order XLIII of the Code of Civil Procedure, 1908 (the “CPC”) which provides that an “order” is a formal expression of any

decision of the Civil Court which is not a decree and only the effective, determinative orders are appealable. Further, reliance was placed therein on cases titled, “West Pakistan Water and Power Development Authority through its Chairman v. Chairman, National Industrial Relations Commission” (**PLD 1979 Supreme Court 912**); and “M. H. Khondkar and another v. The State and another and M. Noman v. Dacca Improvement Trust and 3 others” (**1971 SCMR 743**).

26. Similar view was taken in case titled, “Muhammad Mohsin Rafiq and others v. Messrs Siddiqui & Co.” (**2021 CLC 01**). In this case, it was also importantly highlighted that as a *pari materia* in the Indian Contempt of Court Act, 1971, an appeal is provided against ‘any order or decision’ passed by the superior judiciary in its original jurisdiction yet the issue of right of appeal vis-à-vis the kind of order was resolved by the Supreme Court of India in case titled “Midnapore Peoples Co-op. Bank Ltd. and others v. Chunilal Nanda and others.” (**A.I.R. 2006 SC 2190**) by holding that an appeal would not lie against an order initiating or refusing to initiate contempt proceedings or exonerating the contemnor or dropping the proceedings of contempt but is maintainable against orders punishing for contempt. This view was further endorsed in case titled “B.N. Taneja (IFS) v. Bhajan Lal” (**1988 SCC (3) 26**).

27. Contrastingly, however, in case titled, “Dr. Nazeer Saeed v. Muhammad Javed and 16 others” (**PLD 2014 Lahore 660**), a Division Bench of this Court held that an appeal under Section 19 read in conjunction with Sections 2 and 3 of the Ordinance is maintainable by virtue of Article 204(3) of the Constitution. Accordingly, an order passed by learned Single Judge of this Court in criminal original was set aside. The Court drawing inspiration from case titled, “Chief Executive, Multan Electric Power Company (MEPCO), Multan and others”

v. Messrs Colony Textile Mills Limited and others” (2012 SCMR 906), stressed that contempt proceedings are not an ultimate tool for implementation of an order of the Court as jurisdiction under contempt proceedings is limited to punishment and sentencing. It was stated that ample inherent powers are vested under Section 151 of the CPC to achieve the goal as held in cases titled, “Chand and others v. Abdul Ghaffar and others” (PLD 1965 (W.P.) Lahore 596); and “Bakhtawar etc. v. Amin etc.” (1980 SCMR 89). It was also further held that the Court in contempt proceedings cannot look into vires of order passed by a respondent in compliance with the directions of the Court in original proceedings. While concluding as such, reliance was placed on case titled, “Mehdi Hassan, Additional Secretary, Food and Forests Department, Government of West Pakistan and another v. Zulfiqar Ali, Conservator of Forests, Development Circle, Lahore” (PLD 1960 (W.P.) Lahore 751), wherein, it was stated that when an order passed in constitutional jurisdiction is not complied with, the aggrieved person can either pray for further directions regarding a *bona fide* dispute with respect to the effect and interpretation of the order or to initiate contempt proceedings. Jurisdiction in the latter case would be limited to convict or acquit the contemnor, whereas, in the former case, further directions can be given which would not be in exercise of criminal jurisdiction though after such directions, fresh case of contempt may be made out and in such an eventuality, the plea of *bona fide* in disobeying such order may not be available.

28. In a leading case titled “Matjhabeng Local Municipality and others v. Eskom Holdings Limited and others” (2018 SCMR 100), the constitutional Court of South Africa, threw light on various facets of the law of contempt in general and civil contempt in particular. It was held that ‘willful

disobedience' in civil proceedings of a Court order is both contemptuous and a criminal offence. Relief in civil contempt proceedings could take a variety of forms other than criminal sanctions, such as declaratory orders, mandamus and structural interdicts. A conspicuously striking feature of civil contempt is the ability of the Court to settle contempt and in consequence thereof, waive contempt. As such, civil contempt is indeed peculiar encompassing a variety of hybrid elements. The objective of various remedies is to compel compliance of Court orders. The aggrieved party is generally interested in redressal of grievance, whereas, the Court is seized with the wider aspect of preserving the rule of law through compliance of its orders. In some instances, committal may be essential as a sanction for past non-compliance since breaching or flouting a Court order willfully and with *mala fide* undermines the authority of the Court and erodes broader public interest. Standard of proof is normally applied in proportion to the purpose sought to be achieved. In criminal contempt, proof beyond a reasonable doubt is employed, whereas, in civil contempt, balance of probabilities is applied. However, both civil and criminal contempts can lead to conviction. Therefore, a coherent approach is required to be applied since certain means of enforcement for non-compliance, including committal to prison, may violate freedom and security of the alleged contemnor undermining constitutional guarantees. Where a contemnor is charged with contempt and proceedings are initiated which may lead to conviction, summary procedure should be dispensed with and all requirements of a free trial should be observed unless circumstances warrant exceptional, pressing and swift measures to preserve, retain and fortify the integrity of the judicial process. However, short of committal, the Court may employ appropriate remedy against a recalcitrant party in its discretion to ensure compliance based on balance or

preponderance of probabilities. It was also held that as prerequisites of a civil contempt, there must exist an order, the same must be duly served upon the alleged contemnor and the latter must have disobeyed such order ‘willfully’ and with “*mala fide*”. Evidentiary burden to prove ‘willfulness’ or ‘*mala fide*’ rests with the alleged contemnor. It is also imperative that public official is cited for contempt in his personal capacity distinct from the institutional structures for which the official was responsible and such public official must have willfully or maliciously failed to comply. Further, no Court could give findings adverse to any person’s interests who is not a party to such proceedings except where rule *nisi* is applicable calling upon all concerned to appear and defend a charge against them. However, rule *nisi* is not applicable when a person is indicted for contempt which may entail his punishment. In such cases, the requirements of a fair trial should be followed.

29. The Honorable Supreme Court of Pakistan in its recent pronouncement in case titled, “Saeeda Sultan v. Liaquat Ali Orakzai and others” (PLD 2021 Supreme Court 671) has deliberated upon various contours relating to the contempt of Court proceedings. It was emphatically observed therein that where decree or order of the Honorable Supreme Court of Pakistan is required to be implemented, the appropriate remedy would lie elsewhere, whereas, contempt would only lie under the circumstances enumerated under Article 204 of the Constitution and various provisions of the Ordinance. It was further held that the Ordinance does not contain any provision for execution of the order, judgments, or decrees of the Court in the contempt jurisdiction. Instead, Section 5 of the Ordinance highlights penal consequences for committing contempt of Court. Therefore, civil contempt proceedings cannot be initiated to have a judgment, decree, or order of the Apex Court

executed. These proceedings are quasi-criminal in nature, which are manifestly evident from the penal consequences contained in the Ordinance and are, therefore, not warranted in each case or cases where proper remedy lies elsewhere, such as, execution proceedings or other remedies available under the law. It was emphasized that in contempt proceedings unless the Petitioner clearly stated relevant facts constituting contempt of Court, in addition to being able to demonstrate that the matter complained of is that of “willful disobedience” of any judgment, decree, direction, order, writ, other process of the Court or breach of an undertaking given to Court, no interference is warranted under contempt proceedings. The contempt of Court is a special and extraordinary type of jurisdiction available to the Judge. It is so because the Court is not adjudicating upon any claim between litigating parties in such proceedings. The purpose of having the tool at the hands of the Court is to ensure the dignity of the Court and majesty of law. Hence, the jurisdiction so vested is to be exercised with caution and sparingly and not merely at the whims of the informer to satisfy personal ego. The exercise of contempt jurisdiction is discretionary and is between the Court and the alleged contemnor. However, where efficacious remedy is available by pursuing execution or any other remedy available under the law to seek implementation of the order or judgment of the superior Court, contempt proceedings are not a choice but an exception.

30. Thus, contempt proceedings are sui generis. An appellate Court may be confronted with any exceptional circumstances which may warrant exercise of jurisdiction vested under Section 19 of the Ordinance. In Razia Yaqub case (supra), an order of invalidation of sale deed was set aside in appeal. In Dr. Nazir Saeed case (supra), an order regarding

vires of another impugned order undertaken in contempt proceedings was set aside in appeal. In case titled, “Shahid Orakzai v. Pakistan Muslim League (Nawaz Group) and 8 others” (2000 SCMR 1969), in view of exceptional circumstances arising out of rowdyism in the Supreme Court premises, a criminal original converted into criminal appeal was eventually heard as *Suo Motu* Review Petition by the Honourable Supreme Court of Pakistan to preserve judicial authority as a last resort. It was held that no hard and fast rules can be enunciated to define or limit the exercise of discretion in matter of contempt and powers conferred on a Court of appeal. The Court has a wide discretion in such matters which must be exercised judiciously depending upon the facts and circumstances of each case. Accordingly, the accused acquitted in original contempt proceedings were sentenced.

31. The analysis of the provisions contained in Article 204 of the Constitution read with the scheme of law enshrined in the Ordinance and harmonizing the principles of law developed in the case law discussed above, we are irresistibly constrained to hold that Section 19 of the Ordinance intentionally confers broad discretionary jurisdiction upon the appellate Court to determine the maintainability of the appeal depending upon the peculiar facts and circumstances of each case by examining the nature and kind of order appealed against in the light of settled principles of the law of contempt. The principles deduced from the above deliberations are as follows:

- (i) Civil contempt can only be initiated if there is an order which is duly served upon the alleged contemnor and that there is ‘willful’ and ‘*mala fide*’ non-compliance of the said order by the contemnor who is a party in the proceedings in his personal capacity;

- (ii) Contempt proceedings are between the contemnor and the Court which provide no vested right to any aggrieved person to press for enforcement of contempt proceedings against the alleged contemnor;
- (iii) Contempt proceedings can be initiated *suo motu* by the Court or at the instance of any party who has the status of a mere informer. However, once the information is laid before the Court, the informer loses his further right to pursue the same;
- (iv) Contempt proceedings or an appeal thereagainst does not lie at the desire of the litigant party;
- (v) The primary purpose of civil contempt is always vindication of dignity of the Court and administration of justice but it is also an additional tool for the implementation and clarification of Court orders employed in the manner and to the extent in the sole discretion of the Court;
- (vi) Further directions in contempt proceedings do not constitute contempt but their 'willful disobedience' may give rise to fresh contempt and may eradicate *bona fide* as a defense;
- (vii) Appeal is only competent as of right against an order of conviction or sentence but not against an order refusing to convict or resulting in exoneration;
- (viii) As a general and normal rule, appeal is not maintainable regarding orders refusing to initiate or dropping the contempt proceedings at any stage after due satisfaction of the Court;

- (ix) As an exception to the general rule, an appeal is competent regarding orders passed in contempt proceedings which are inherently without jurisdiction or void or *coram non judice* or for multiple reasons in the discretion of the appellate Court are of the nature requiring exercise of jurisdiction in appeal;
- (x) Any observations made by the Court in original or appellate proceedings have no bearing or effect on the merits of any pending adjudication between the parties to the *lis* before any judicial forum; and
- (xi) In exceptional and testing times, inherent discretion of the Court can be enlarged and invoked to thwart any real threat to judicial authority and constitutional disorder.

32. By employing the aforesaid principles with respect to impugned orders in the titled appeals, we are of the considered view that the same are misconceived. The contempt proceedings were initiated by the Court against the Respondents at the instance of Appellants regarding non-compliance of its orders. However, the Court after its due satisfaction that there was no “willful disobedience” by the alleged contemnors dropped the contempt proceedings. Hence, the instant appeals are hereby **dismissed**, being not maintainable.

(ANWAARUL HAQ PANNUN) (ABID HUSSAIN CHATTHA)
JUDGE JUDGE

Approved for reporting.

JUDGE